

STATE OF NEW YORK

7314--B

2025-2026 Regular Sessions

IN SENATE

April 9, 2025

Introduced by Sens. JACKSON, GIANARIS, SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law and the administrative code of the city of New York, in relation to permit surviving spouses of certain retirement plan members to retain certain benefits upon remarriage

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 7 of section 501 of the retirement and social
2 security law, as amended by chapter 457 of the laws of 2017, is amended
3 to read as follows:
4 7. "Eligible beneficiary" for the purposes of section five hundred
5 nine of this article shall mean the following persons or classes of
6 persons in the order set forth: (a) a surviving spouse who has not
7 renounced survivorship rights in a separation agreement, until remarriage,
8 (b) surviving children until age twenty-five, (c) dependent
9 parents, determined under regulations promulgated by the comptroller,
10 (d) any other person who qualified as a dependent on the final federal
11 income tax return of the member or the return filed in the year immediately
12 preceding the year of death, until such person reaches twenty-one
13 years of age, (e) with respect to members of the New York city
14 employees' retirement system (other than a New York city uniformed
15 correction/sanitation revised plan member or an investigator revised
16 plan member) and the board of education retirement system of the city of
17 New York, a person whom the member shall have nominated in the form of a
18 written designation, duly acknowledged and filed with the head of the
19 retirement system for the purpose of section five hundred eight of this

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 article. In the event that a class of eligible beneficiaries consists of
2 more than one person, benefits shall be divided equally among the
3 persons in such class. For the purposes of section five hundred eight of
4 this article the term "eligible beneficiary" shall mean such person as
5 the member shall have nominated to receive the benefits provided in this
6 article. To be effective, such a nomination must be in the form of a
7 written designation, duly acknowledged and filed with the head of the
8 retirement system for this specific purpose. In the event such desig-
9 nated beneficiary does not survive ~~[him]~~ the member, or if ~~[he]~~ such
10 member shall not have so designated a beneficiary, such benefits shall
11 be payable to the deceased member's estate or as provided in section one
12 thousand three hundred ten of the surrogate's court procedure act ~~[and]~~.

13 (f) notwithstanding any other provisions of law, "eligible beneficiary"
14 of a New York city uniformed sanitation revised plan member for the
15 purposes of section five hundred nine of this article shall mean the
16 following persons or classes of persons in the order set forth: (i) a
17 surviving spouse who has not renounced survivorship rights in a sepa-
18 ration agreement, (ii) surviving children until age twenty-five, (iii)
19 dependent parents, determined under regulations promulgated by the comp-
20 troller and (iv) any other person who qualified as a dependent on the
21 final federal income tax return of the member or the return filed in the
22 year immediately preceding the year of death, until such person reaches
23 twenty-one years of age, and (g) notwithstanding any other provisions of
24 law, "eligible beneficiary" of a New York city police pension fund
25 member for the purposes of section five hundred nine of this article
26 shall mean the following persons or classes of persons in the order set
27 forth: (i) a surviving spouse who has not renounced survivorship rights
28 in a separation agreement, (ii) surviving children until age twenty-
29 five, (iii) dependent parents, determined under regulations promulgated
30 by the comptroller, and (iv) any other person who qualified as a depend-
31 ent on the final federal income tax return of the member or the return
32 filed in the year immediately preceding the year of death, until such
33 person reaches twenty-one years of age.

34 § 2. Subdivision a of section 13-209 of the administrative code of the
35 city of New York is amended to read as follows:

36 a. The board of trustees of the pension fund shall pay a pension out
37 of such fund to the spouse, child or children or dependent parent or
38 parents of any deceased member of the police force in such department,
39 if the death of such member occur during ~~[his or her]~~ their service in
40 such police force, or after ~~[he or she]~~ such member was retired from
41 service in such force. The amount of any such pension to be paid by the
42 board of trustees to each of the several representatives of such member,
43 in case there shall be more than one, from time to time, may be deter-
44 mined by such board according to the circumstances of each case. The
45 annual pension to the representative or representatives of such member,
46 however, shall be six hundred dollars, and no part of such sum shall be
47 paid to any ~~[such spouse who shall remarry, after such remarriage, or to~~
48 ~~any]~~ child after it shall have reached the age of eighteen years.

49 In lieu of the aforementioned pension, when a member of the force dies
50 while in active service, ~~[his or her]~~ their beneficiary shall be paid
51 the accumulated deductions of such deceased member if written applica-
52 tion therefor be made to the board of trustees by such beneficiary.

53 § 3. This act shall take effect immediately and shall apply to surviv-
54 ing spouses in pay status as of such date and for members dying on or
55 after such date.